



New South Wales

Crimes and Other Legislation Amendment (Further Organised Crimes Reforms) Bill 2026

Contents

		Page
	1 Name of Act	2
	2 Commencement	2
Schedule 1	Amendment of Children (Criminal Proceedings) Act 1987 No 55	3
Schedule 2	Amendment of Crime Commission Act 2012 No 66	4
Schedule 3	Amendment of Crimes Act 1900 No 40	11
Schedule 4	Amendment of Crimes (Serious Crime Prevention Orders) Act 2016 No 15	15
Schedule 5	Amendment of Law Enforcement (Powers and Responsibilities) Act 2002 No 103	18
Schedule 6	Amendment of Criminal Procedure Act 1986 No 209	28
Schedule 7	Amendment of Road Transport Act 2013 No 18	29
Schedule 8	Amendment of Roads Act 1993 No 33	31

I certify that this public bill, which originated in the Legislative Assembly, has finally passed the Legislative Council and the Legislative Assembly of New South Wales.

*Clerk of the Legislative Assembly.
Legislative Assembly,
Sydney,*

, 2026



New South Wales

Crimes and Other Legislation Amendment (Further Organised Crimes Reforms) Bill 2026

Act No , 2026

An Act to amend Acts administered by the Attorney General and the Minister for Police and Counter-terrorism in relation to organised crime reforms.

I have examined this bill and find it to correspond in all respects with the bill as finally passed by both Houses.

Assistant Speaker of the Legislative Assembly.

The Legislature of New South Wales enacts—

1 Name of Act

This Act is the *Crimes and Other Legislation Amendment (Further Organised Crimes Reforms) Act 2026*.

2 Commencement

This Act commences as follows—

- (a) for Schedules 5 and 6[1]—on a day or days to be appointed by proclamation,
- (b) otherwise—on the date of assent to this Act.

Schedule 1 Amendment of Children (Criminal Proceedings) Act 1987 No 55

[1] Section 3 Definitions

Omit section 3(1), definition of *serious children's indictable offence*, paragraph (c).

Insert instead—

- (c) an offence under the following sections of the *Crimes Act 1900*—
 - (i) section 48,
 - (ii) section 61J, other than in circumstances referred to in section 61J(2)(d),
 - (iii) section 61K, or section 61B before the commencement of the *Crimes (Amendment) Act 1989*,
 - (iv) section 93G(1A),
 - (v) section 93GA,
 - (vi) section 196(1)(b) and (2)(b),

Schedule 2 Amendment of Crime Commission Act 2012 No 66

[1] Section 4 Interpretation

Insert in alphabetical order in section 4(1)—

organised crime offence has the same meaning as in the *Law Enforcement (Powers and Responsibilities) Act 2002*, Part 5, Division 4B.

organised crime offence summons means a summons issued under section 24 that includes a requirement referred to in section 29A.

[2] Section 25 Failure of witnesses to attend and answer questions etc

Omit the penalty.

Insert instead—

Maximum penalty—40 penalty units or imprisonment for 4 years, or both.

[3] Section 27 False or misleading evidence

Omit “not exceeding 500 penalty units or by imprisonment for a period not exceeding 5 years” from section 27(2).

Insert instead “of not more than 1,000 penalty units or imprisonment for not more than 10 years”.

[4] Section 28 Commission may require information from certain government agencies

Omit section 28(4), penalty.

Insert instead—

Maximum penalty—40 penalty units or imprisonment for 12 months, or both.

[5] Section 29, heading

Insert “**generally**” after “**things**”.

[6] Section 29(9), penalty

Omit the penalty.

Insert instead—

Maximum penalty for subsection (9)—40 penalty units or imprisonment for 12 months, or both.

[7] Sections 29A and 29B

Insert after section 29—

29A Special power to obtain documents and other things—organised crime offence

(1) This section applies if—

- (a) a summons is issued by an executive officer under section 24(1), and
- (b) the summons is in connection with the investigation of an organised crime offence, and
- (c) the executive officer believes on reasonable grounds that delay in the production of documents or other things referred to in the summons may result in—

- (i) the concealment, destruction, modification or removal of the documents or other things, including the modification of the contents of an electronic device, or
 - (ii) serious prejudice to the conduct of the investigation.
- (2) The summons may include a requirement that the person on whom the summons is served—
 - (a) immediately produce the documents or other things referred to in the summons to the person serving the summons, and
 - (b) provide the person serving the summons with the information or assistance, in relation to a computer, that is referred to in the *Law Enforcement (Powers and Responsibilities) Act 2002*, section 76AM(1)–(2A).
- (3) This section is repealed 2 years after it commences.

29B Refusal or failure to comply with organised crime offence summons

- (1) A person on whom an organised crime offence summons is served must not, without reasonable excuse—
 - (a) refuse or fail to produce a document or other thing the person was required to immediately produce by the summons, or
 - (b) refuse or fail to provide information or assistance, in relation to a computer, required by the person serving the summons.Maximum penalty—40 penalty units or imprisonment for 4 years, or both.
- (2) This section is repealed 2 years after it commences.

[8] Section 33 Applications to Supreme Court for review of Commission’s decisions concerning entitlement to refuse to take oath or affirmation, produce documents or things or answer questions

Insert after section 33(1)(a)—

- (a1) to do any of the following required under an organised crime offence summons—
 - (i) produce a document or other thing,
 - (ii) provide information or assistance in relation to a computer, or

[9] Section 35 Time for commencing prosecutions

Insert “or 29B(1)” after “section 25(2)”.

[10] Section 37 Conditional release of witness

Omit section 37(3), penalty.

Insert instead—

Maximum penalty for subsection (3)—40 penalty units or imprisonment for 4 years, or both.

[11] Section 39, heading

Insert “generally” after “documents”.

[12] Section 39AA

Insert after section 39—

39AA Privilege for documents and other things in relation to organised crime offence summonses

- (1) A person serving an organised crime offence summons must explain to the person on whom the summons is served that—
- (a) the person may object to immediately producing the documents or other things referred to in the summons, and
 - (b) if the person objects to immediately producing the documents or other things—
 - (i) the documents or other things are not admissible in evidence against the person in civil, criminal or disciplinary proceedings, and
 - Note—** see subsection (2)
 - (ii) the person may apply to the Supreme Court for a review under section 33.

Note— If an objection under this subsection is made by the person on whom the summons is served, the person is still required to produce the documents or other things referred to in the summons. Failure to produce the documents or other things may be dealt with as an offence under section 29B or contempt of the Commission under section 47A.

- (2) A document or other thing produced by a person in accordance with an organised crime offence summons is not admissible in evidence against the person in civil, criminal or disciplinary proceedings other than a proceeding for—
- (a) the falsity of the document or other thing given by the person, or
 - (b) a relevant order, unless the proceedings for the relevant order have commenced or are imminent.
- (3) Subsection (2) does not make a document or other thing inadmissible in civil, criminal or disciplinary proceedings if the person served with the organised crime offence summons—
- (a) is an adult, and
 - (b) was given the explanation required by subsection (1), and
 - (c) did not object to immediately producing the documents or other things.
- (4) If the person served with the organised crime offence summons is less than 18 years of age at the time the summons is served, the person is taken for the purposes of this Act to have objected to immediately producing the documents or other things referred to in the summons.
- (5) This section is repealed 2 years after it commences.
- (6) In this section—
relevant order has the same meaning as in section 39.

[13] Section 45 Publication or disclosure of evidence

Omit section 45(3), penalty.

Insert instead—

Maximum penalty—200 penalty units or imprisonment for 4 years, or both.

[14] Section 45(3A)

Insert after section 45(3)—

- (3A) The maximum fine specified in subsection (3) for an offence dealt with summarily applies regardless of the *Criminal Procedure Act 1986*, section 268.

[15] Section 45A Disclosure of evidence of accused about offence for which charged

Omit section 45A(6), penalty.

Insert instead—

Maximum penalty—200 penalty units or imprisonment for 4 years, or both.

[16] Section 45A(6A)

Insert after section 45A(6)—

- (6A) The maximum fine specified in subsection (6) for an offence dealt with summarily applies regardless of the *Criminal Procedure Act 1986*, section 268.

[17] Section 47A Contempt of the Commission

Insert after section 47A(1)(b)—

- (b1) if served with an organised crime offence summons—
- (i) refuses or fails to produce a document or other thing the person was required to immediately produce by the summons, or
 - (ii) refuses or fails to provide information or assistance, in relation to a computer, required by the person serving the summons, or

[18] Section 47C Powers of Commissioner in relation to alleged contempt

Omit section 47C(5).

Insert instead—

- (5) If the alleged contempt of the Commission is committed in the face or hearing of the Commissioner, a summons need not be issued against the contemnor but the Commissioner may direct that the contemnor—
- (a) be immediately taken into custody in a correctional centre or elsewhere by—
 - (i) a member of the NSW Police Force, or
 - (ii) an officer of the Commission authorised by the Commissioner, and
- Note—** A person in custody may be given into the keeping of a correctional officer. See the *Crimes (Administration of Sentences) Act 1999*, section 250.
- (b) be called on to show cause why the contemnor should not be dealt with under section 47B for the alleged contempt.

[19] Section 47C(7)(b)

Omit section 47C(7)(b) and (c).

Insert instead—

- (b) for the contemnor to be detained in a correctional facility or elsewhere until the contemnor is brought before the Supreme Court.

[20] Section 47D Conditional release of contemnor

Omit section 47D(5), penalty.

Insert instead—

Maximum penalty—40 penalty units or imprisonment for 4 years, or both.

[21] Section 47G Obstruction or disruption of Commission

Omit the penalty.

Insert instead—

Maximum penalty—200 penalty units or imprisonment for 4 years, or both.

[22] Section 47G(2)

Insert at the end of section 47G—

- (2) The maximum fine specified in subsection (1) for an offence dealt with summarily applies regardless of the *Criminal Procedure Act 1986*, section 268.

[23] Section 81 Disclosures prejudicing investigations

Omit section 81(1), penalty.

Insert instead—

Maximum penalty—100 penalty units or imprisonment for 2 years, or both.

[24] Section 85 Proceedings for offences

Insert after section 85(1)—

- (1A) Subsection (1) does not affect the capacity of a prosecutor to elect, under the *Criminal Procedure Act 1986*, for a prosecution for an offence under section 25, 37(3), 45(3), 45A(6), 47D(5) or 47G(1) to be dealt with on indictment.

[25] Sections 87 and 88

Omit section 88.

Insert instead—

87 Monitoring by Law Enforcement Conduct Commission of organised crime offence summonses

- (1) The Law Enforcement Conduct Commission must keep under scrutiny the exercise of powers under this Act in relation to organised crime offence summonses.
- (2) For subsection (1), the Law Enforcement Conduct Commission may require the Commissioner to provide information about the exercise of the powers.
- (3) The Commissioner must ensure the Law Enforcement Conduct Commission is provided with a report about—
- (a) any organised crime offence summons served, and
 - (b) the reasons for serving the organised crime offence summons, and
 - (c) the powers used under organised crime offence summonses.
- (4) A report under subsection (3) must be provided within 3 months after the organised crime offence summons to which the report relates ceases to have effect.
- (5) The Law Enforcement Conduct Commission must annually—
- (a) prepare a report about the exercise of the powers referred to in subsection (1), and
 - (b) give the report to—

- (i) the Minister, and
 - (ii) the Attorney General.
- (6) A report under subsection (5) must be tabled in each House of Parliament as soon as practicable after the report is received by the Minister and the Attorney General.
- (7) The Law Enforcement Conduct Commission must also give a copy of a report under subsection (5) to the Joint Parliamentary Committee on the Ombudsman, the Law Enforcement Conduct Commission and the Crime Commission on the same day on which the report is given to the Minister and the Attorney General.
- (8) This section is repealed on the later of the following days—
 - (a) the day that is 2 years after the section commences,
 - (b) the day the second report under this section is tabled in each House of Parliament.

88 Annual reports to be given by Commissioner to Minister and Attorney General

- (1) The Commissioner must report annually on the exercise of powers in relation to organised crime offence summonses.
- (2) Each report must be provided, within 4 months after 30 June in each year, to—
 - (a) the Minister, and
 - (b) the Attorney General.
- (3) The Commissioner must also give a copy of a report under subsection (1) to the Joint Parliamentary Committee on the Ombudsman, the Law Enforcement Conduct Commission and the Crime Commission on the same day on which the report is given to the Minister and the Attorney General.
- (4) The report under subsection (1) must specify the following matters in relation to the relevant year ending on 30 June—
 - (a) the number of organised crime offence summonses that were issued,
 - (b) the number of documents or other things produced under organised crime offence summonses,
 - (c) the number of objections made to—
 - (i) immediately produce a document or other thing under organised crime offence summonses, or
 - (ii) providing information or assistance in relation to a computer,
 - (d) the number of contempt proceedings in relation to refusal or failure to comply with organised crime offence summonses,
 - (e) the breakdown by age of persons on whom organised crime offence summonses were served,
 - (f) the breakdown by Aboriginal or Torres Strait Islander status of persons on whom organised crime offence summonses were served,
 - (g) other matters requested by the Minister or Attorney General.
- (5) A report under this section may be combined with another annual report of the Commission.
- (6) A report under this section must be tabled in each House of Parliament as soon as practicable after the report is received by the Minister and the Attorney General.

- (7) This section is repealed 2 years after it commences.

[26] Schedule 5 Savings, transitional and other provisions

Insert at the end of the schedule, with appropriate part numbering—

Part Provision consequent on enactment of Crimes and Other Legislation Amendment (Further Organised Crimes Reforms) Act 2026

1 Certain provisions cease to have effect

- (1) A relevant provision ceases to have effect 12 months after the day on which the relevant provision commences.
- (2) In this clause—
relevant provision means a provision of this Act inserted by the *Crimes and Other Legislation Amendment (Further Organised Crimes Reforms) Act 2026* in relation to organised crime offence summonses, other than sections 87 and 88.

Schedule 3 Amendment of Crimes Act 1900 No 40

[1] Section 26A

Insert after section 26—

26A Aggravated conspiracy to murder

- (1) A person who commits an offence under section 26 in circumstances of aggravation is guilty of an offence.
Maximum penalty—imprisonment for life.
- (2) For subsection (1), *circumstances of aggravation* means circumstances in which the conduct that constitutes the offence under section 26 is conduct that is linked to organised crime.
- (3) Without limiting subsection (2), conduct may be linked to organised crime if the conduct—
 - (a) is committed by 2 or more persons, or
 - (b) involves substantial planning and organisation, or
 - (c) involves systemic and continuing activity, or
 - (d) is committed to obtain profit, power or influence, or
 - (e) is committed for the purpose of retribution against another person or group of persons.
- (4) If, on the trial of a person for an offence under subsection (1), the jury is not satisfied the accused is guilty of the offence but is satisfied on the evidence the person is guilty of an offence under section 26—
 - (a) the jury may find the person not guilty of the offence charged but guilty of an offence under section 26, and
 - (b) the accused is liable to punishment for the offence under section 26.

[2] Section 30A

Insert after section 30—

30A Aggravated attempts to murder

- (1) A person who commits an offence under a relevant provision in circumstances of aggravation is guilty of an offence.
Maximum penalty—imprisonment for life.
- (2) For subsection (1), *circumstances of aggravation* means circumstances in which the conduct that constitutes the offence under the relevant provision is conduct that is linked to organised crime.
- (3) Without limiting subsection (2), conduct may be linked to organised crime if the conduct—
 - (a) is committed by 2 or more persons, or
 - (b) involves substantial planning and organisation, or
 - (c) involves systemic and continuing activity, or
 - (d) is committed to obtain profit, power or influence, or
 - (e) is committed for the purpose of retribution against another person or group of persons.

- (4) If, on the trial of a person for an offence under subsection (1), the jury is not satisfied the accused is guilty of the offence but is satisfied on the evidence the person is guilty of an offence under a relevant provision—
 - (a) the jury may find the person not guilty of the offence charged but guilty of an offence under a relevant provision, and
 - (b) the accused is liable to punishment for the offence under the relevant provision.
- (5) In this section—
relevant provision means section 27, 28, 29 or 30.

[3] **Part 3, Division 15D**

Insert after Division 15C—

Division 15D Use of digital platforms in relation to offences linked to organised crime

91UA Definition

In this division—

organised crime offence has the same meaning as in the *Law Enforcement (Powers and Responsibilities) Act 2002*, Part 5, Division 4B.

91V Administering digital platform used to arrange or facilitate conduct constituting organised crime offence

- (1) A person (the **administrator**) is guilty of an offence if—
 - (a) the administrator administers, or assists in the administration of, a digital platform, and
 - (b) the digital platform is used by another person to arrange or facilitate conduct that would constitute an organised crime offence, and
 - (c) the administrator—
 - (i) intends for the digital platform to be used by another person to arrange or facilitate conduct that would constitute an organised crime offence, or
 - (ii) is aware the digital platform is being used by another person to arrange or facilitate conduct that would constitute an organised crime offence.

Maximum penalty—imprisonment for 14 years.

- (2) In proceedings for an offence against subsection (1), it is not necessary to prove the identity of the person using the digital platform to arrange or facilitate conduct that would constitute an organised crime offence.
- (3) In this section—
administer, a digital platform, includes the following—
 - (a) design, create, manage or maintain the digital platform, part of the digital platform or a function of the digital platform,
 - (b) provide a device to host the digital platform, part of the digital platform or a function of the digital platform,
 - (c) facilitate the operation and use of the digital platform, part of the digital platform or a function of the digital platform.

91W Encouraging use of digital platform to arrange or facilitate conduct constituting organised crime offence

- (1) A person is guilty of an offence if—
- (a) the person is 18 or more years of age, and
 - (b) the person encourages another person to use a digital platform, and
 - (c) the person intends for the other person to use the digital platform to arrange or facilitate conduct that would constitute an organised crime offence.

Maximum penalty—imprisonment for 14 years.

- (2) In determining whether a person has encouraged another person to use a digital platform with the intention the person use the platform to arrange or facilitate conduct that would constitute an organised crime offence in proceedings for an offence against this section, it is not necessary to prove—
- (a) the identity of the person encouraged to use the digital platform to arrange or facilitate conduct that would constitute an organised crime offence, or
 - (b) another person in fact used the digital platform to arrange or facilitate conduct that would constitute an organised crime offence, or
 - (c) if another person did in fact use the digital platform to arrange or facilitate conduct that would constitute an organised crime offence—that it was the defendant's encouragement that caused the person to use the digital platform to arrange or facilitate the conduct.

91X Providing information about avoiding detection

- (1) A person is guilty of an offence if the person intentionally provides information to another person about how to avoid detection of, or prosecution for, conduct that involves the commission of an offence against section 91V or 91W.

Maximum penalty—imprisonment for 14 years.

- (2) In proceedings for an offence against subsection (1), it is not necessary to prove—
- (a) the identity of the person to whom the information was provided, or
 - (b) the information was actually used by the other person.

91Y Defence—reasonable steps

It is a defence in proceedings for an offence against section 91V that the defendant, on becoming aware the digital platform was being used to arrange or facilitate conduct that constituted an organised crime offence, took all reasonable steps in the circumstances to prevent other persons from being able to use the digital platform to arrange or facilitate conduct that constituted an organised crime offence.

91Z Defence—public benefit

- (1) It is a defence in proceedings for an offence against section 91V, 91W or 91X that the conduct engaged in by the defendant—
- (a) was of public benefit, and
 - (b) did not extend beyond what was of public benefit.
- (2) Conduct is of public benefit only if the conduct is necessary for or of assistance in—

- (a) enforcing or administering a law of—
 - (i) the State, or
 - (ii) another State or a Territory, or
 - (iii) the Commonwealth, or
 - (b) monitoring compliance with, or investigating a contravention of, a law of—
 - (i) the State, or
 - (ii) another State or a Territory, or
 - (iii) the Commonwealth, or
 - (c) the administration of justice.
- (3) The question of whether a person's conduct is of public benefit is a question of fact and the person's motives for engaging in the conduct are irrelevant.

91ZA Defence—law enforcement officers

It is a defence in proceedings for an offence against section 91V, 91W or 91X that—

- (a) the defendant was, at the time of the offence, a law enforcement officer acting in the course of the officer's duties, and
- (b) the conduct of the defendant was reasonable in the circumstances for performing that duty.

91ZB Defence—approved research

It is a defence in proceedings for an offence against section 91V, 91W or 91X that the conduct engaged in by the defendant—

- (a) was necessary for or of assistance in conducting scientific, medical or educational research approved by the Attorney General in writing for this section, and
- (b) did not contravene any conditions of the approval.

Schedule 4 Amendment of Crimes (Serious Crime Prevention Orders) Act 2016 No 15

[1] Section 3 Definitions

Insert in alphabetical order in section 3(1)—

interim serious crime prevention order—see section 12A(2).

[2] Part 2A

Insert after Part 2—

Part 2A Interim serious crime prevention orders

12A Supreme Court may make interim serious crime prevention orders

- (1) This section applies if—
 - (a) proceedings on an application by an eligible applicant for a serious crime prevention order are before the Supreme Court, and
 - (b) it appears to the Court the matters alleged in the application would, if proved, justify the making of a serious crime prevention order.
- (2) The Supreme Court may make an order (an *interim serious crime prevention order*) against a person specified in the application.
- (3) In determining whether to make an interim serious crime prevention order, the Supreme Court may admit and take into account hearsay evidence despite any rule relating to the admission of hearsay evidence, whether under the *Evidence Act 1995* or otherwise, if—
 - (a) the Court is satisfied the evidence is from a reliable source and is otherwise relevant and of probative value, and
 - (b) the person against whom the order is proposed to be made has been notified of, and served with a copy of, the evidence before its admission.

12B Duration of interim serious crime prevention orders

- (1) An interim serious crime prevention order commences on the later of the following—
 - (a) the day on which the order is served on the person against whom the order is made,
 - (b) the day specified in the order.
- (2) An interim serious crime prevention order expires on the earlier of the following—
 - (a) the day specified in the order,
 - (b) if the appropriate court makes a serious crime prevention order at the end of the relevant application proceedings—the day the order against the person commences,
 - (c) the day the application for a serious crime prevention order against the person is withdrawn,
 - (d) the day the court decides, at the end of the relevant application proceedings, not to make the serious crime prevention order against the person.

- (3) For subsection (2), the day specified in the interim serious crime prevention order must not be more than 28 days after the order commences.

12C Extension of interim serious crime prevention orders

- (1) The Supreme Court may, on application by the eligible applicant, extend an interim serious crime prevention order.
- (2) However, the total of the periods for which interim serious crime prevention orders can be in force in relation to a person must not be more than 3 months.

12D Content of interim serious crime prevention orders

- (1) Section 6 applies to the content of an interim serious crime prevention order in the same way as the section applies to the content of a serious crime prevention order.
- (2) For subsection (1), section 6 applies as if a reference in the section to a serious crime prevention order included a reference to an interim serious crime prevention order.

12E Service of interim serious crime prevention orders

- (1) The eligible applicant for the serious crime prevention order in relation to which the interim serious crime prevention order is made must ensure the interim serious crime prevention order is served on the person against whom the order is made.
- (2) The interim serious crime prevention order—
 - (a) may be served by the eligible applicant or another person, and
 - (b) must be served by means of personal service.

12F Contravention of interim serious crime prevention orders

- (1) Section 8 applies to the contravention of an interim serious crime prevention order in the same way as the section applies to a contravention of a serious crime prevention order.
- (2) To avoid doubt, sections 9 and 10 apply to a conviction of an offence against section 8 in relation to an interim serious crime prevention order in the same way as the sections apply in relation to a conviction of an offence against section 8 in relation to a serious crime prevention order.
- (3) For subsections (1) and (2), sections 8–10 apply as if a reference in the sections to a serious crime prevention order included a reference to an interim serious crime prevention order.

12G Appeals against making of interim serious crime prevention orders

- (1) Section 11 applies to an appeal against the making of an interim serious crime prevention order in the same way as the section applies to the appeal against the making of a serious crime prevention order.
- (2) For subsection (1), section 11 applies as if a reference in the section to—
 - (a) a serious crime prevention order included a reference to an interim serious crime prevention order, and
 - (b) the applicant for the order were a reference to the applicant for the serious crime prevention order in relation to which the interim serious crime prevention order was made.

12H Variation or revocation of interim serious crime prevention orders

- (1) Section 12 applies to the variation or revocation of an interim serious crime prevention order in the same way as the section applies to the variation or revocation of a serious crime prevention order.
- (2) For subsection (1), section 12 applies as if a reference in the section to—
 - (a) a serious crime prevention order included a reference to an interim serious crime prevention order, and
 - (b) the applicant for the order were a reference to the applicant for the serious crime prevention order in relation to which the interim serious crime prevention order was made, and
 - (c) the proceedings for the original order were a reference to the proceedings for the application for the serious crime prevention order in relation to which the interim serious crime prevention order was made.

[3] Section 14 Rules of court

Insert “, or in relation to interim serious crime prevention orders,” after “orders”.

[4] Schedule 1 Savings, transitional and other provisions

Insert at the end of the schedule, with appropriate part numbering—

Part Provision consequent on enactment of Crimes and Other Legislation Amendment (Further Organised Crimes Reforms) Act 2026

1 Application of Part 2A

Part 2A, as inserted by the *Crimes and Other Legislation Amendment (Further Organised Crimes Reforms) Act 2026*, extends to an application for a serious crime prevention order made but not finally determined before the commencement of Part 2A.

Schedule 5 Amendment of Law Enforcement (Powers and Responsibilities) Act 2002 No 103

[1] Whole Act, except as otherwise amended by this schedule

Omit “digital evidence access order” wherever occurring.

Insert instead “digital evidence access order (warrant)”.

[2] Whole Act, except as otherwise amended by this schedule

Omit “digital evidence access orders” wherever occurring.

Insert instead “digital evidence access orders (warrant)”.

[3] Section 3 Interpretation

Omit section 3(1), definitions of *computer*, *digital evidence access order* and *specified person*.

Insert in alphabetical order—

computer—

(a) for Part 5, Division 4A—see section 76AA, or

(b) for Part 5, Division 4B—see section 76AR.

digital evidence access order (organised crime), for Part 5, Division 4B—see section 76AR.

digital evidence access order (warrant), for Part 5, Division 4A—see section 46.

organised crime offence, for Part 5, Division 4B—see section 76AS.

serious offence, for Part 5, Division 4B—see section 76AR.

specified person—

(a) for Part 5, Division 4A—see section 76AA, or

(b) for Part 5, Division 4B—see section 76AR.

[4] Section 3(1), definitions of “eligible applicant” and “eligible Judge”, paragraph (a)

Omit “Part 5” wherever occurring.

Insert instead “Part 5, Division 4A”.

[5] Section 46 Interpretation

Insert after section 46(1), definition of *eligible issuing officer*, paragraph (b)—

(b1) for a digital evidence access order (organised crime)—a Judge of the Local Court, or

[6] Section 46(1), definition of “executing officer”, paragraph (d)

Omit “officer.” from paragraph (c).

Insert instead—

officer, or

(d) for a digital evidence access order (organised crime)—any police officer.

[7] Part 5, Division 4A, heading

Insert “(warrant)” after “orders”.

[8] Section 76AE Applications for digital evidence access orders by telephone

Insert after section 76AE(4)—

- (4A) The applicant must, as soon as practicable after making the application, verify the information given by the applicant in or in connection with the application by affidavit given to the eligible issuing officer.

[9] Section 76AM Effect of digital evidence access order

Omit “suitable” from section 76AM(2B).

Insert instead “support”.

[10] Section 76AM(4), definition of “suitable person”

Omit “*suitable*”.

Insert instead “*support*”.

[11] Section 76AO Failure to comply with digital evidence access order

Omit “5 years” from section 76AO(1), penalty.

Insert instead “7 years”.

[12] Part 5, Division 4B

Insert after section 76AQ—

Division 4B Digital evidence access orders (organised crime)

Subdivision 1 Preliminary

76AR Definitions

In this division—

computer has the same meaning as in Division 4A.

digital evidence access order (organised crime) means an order issued under section 76AZB(3).

organised crime offence—see section 76AS.

serious offence means the following offences—

- (a) an aggravated circumstances offence within the meaning of the *Crimes Act 1900*, section 195,
- (b) an offence against the *Crimes Act 1900*, section 55 or 86, Part 3, Division 15, Part 3A, Division 5, Part 4, Division 2, section 99 or 192E or Part 4AC,
- (c) an offence against the *Firearms Act 1996*, section 7 or 7A,
- (d) an offence against the *Public Health (Tobacco) Act 2008*, section 6(1) or 7(1),
- (e) another offence prescribed by the regulations.

specified person, for a digital evidence access order (organised crime), means a person specified in the order as being subject to a direction under the order.

76AS Meaning of “organised crime offence”

- (1) In this division, *organised crime offence* means a serious offence that is linked to organised crime.

- (2) Without limiting subsection (1), a serious offence may be linked to organised crime if the serious offence—
 - (a) is committed by 2 or more persons, or
 - (b) involves substantial planning and organisation, or
 - (c) involves systemic and continuing activity, or
 - (d) is committed to obtain profit, power or influence, or
 - (e) is committed for the purpose of retribution against another person or group of persons.

Subdivision 2 Applications for digital evidence access orders (organised crime)

76AT General matters for applications for digital evidence access orders (organised crime)

- (1) A police officer may apply for a digital evidence access order (organised crime) in relation to a computer that has been lawfully seized by a police officer other than in connection with the following—
 - (a) a search warrant within the meaning of Division 4A,
 - (b) a crime scene warrant.
- (2) An application for a digital evidence access order (organised crime) may be made only if the police officer reasonably suspects data contained on the computer is connected to or relevant to the investigation of an organised crime offence.
- (3) An application for a digital evidence access order (organised crime) may be made—
 - (a) within 14 days after the computer is lawfully seized, or
 - (b) on a later date, but only if the police officer applying for the order demonstrates that it was not reasonably practicable to apply within 14 days.

76AU Applications for digital evidence access orders (organised crime) in person

- (1) An application for a digital evidence access order (organised crime) may be made in person.
- (2) An application for a digital evidence access order (organised crime) made under this section must be in writing in the form prescribed by the regulations.
- (3) An eligible issuing officer must not issue a digital evidence access order (organised crime) under this section unless the information given by the applicant in or in connection with the application is verified before the eligible issuing officer—
 - (a) on oath or affirmation, or
 - (b) by affidavit.
- (4) An eligible issuing officer may administer an oath or affirmation or take an affidavit for the purposes of an application for a digital evidence access order (organised crime).

76AV Applications for digital evidence access orders (organised crime) by email or other electronic means

- (1) An application for a digital evidence access order (organised crime) may be made—
 - (a) by email, or
 - (b) in another way prescribed by the regulations for this section.
- (2) An application for a digital evidence access order (organised crime) made under this section must be in the form prescribed by the regulations.
- (3) An eligible issuing officer must not issue a digital evidence access order (organised crime) under this section unless the information given by the applicant in or in connection with the application is verified—
 - (a) before the eligible issuing officer on oath or affirmation, or
 - (b) by affidavit.
- (4) An eligible issuing officer may administer an oath or affirmation or take an affidavit for the purposes of an application for a digital evidence access order (organised crime).
- (5) The requirement under subsection (3)(a) for information to be verified before an eligible issuing officer is taken to be satisfied if—
 - (a) the applicant appears before the eligible issuing officer by audio visual link or telephone, and
 - (b) the eligible issuing officer administers the oath or affirmation by the same means.
- (6) If the eligible issuing officer issues the digital evidence access order (organised crime) on an application made under this section, the eligible issuing officer may—
 - (a) email the signed order to the applicant, or
 - (b) give the signed order to the applicant in another way prescribed by the regulations.

76AW Applications for digital evidence access orders (organised crime) by telephone

- (1) An application for a digital evidence access order (organised crime) may be made by telephone if it is not practicable for the application to be made—
 - (a) in person under section 76AU, or
 - (b) by email or in another way under section 76AV.

Note— *Telephone* includes radio, facsimile and any other communication device.
- (2) An eligible issuing officer must not issue a digital evidence access order (organised crime) on an application made by telephone unless the eligible issuing officer is satisfied—
 - (a) the digital evidence access order (organised crime) is required urgently, and
 - (b) it is not practicable for the application to be made in person under section 76AU or by email or in another way under section 76AV.
- (3) If it is not practicable for an application for a digital evidence access order (organised crime) to be made by telephone directly to an eligible issuing officer, the application may be transmitted to the eligible issuing officer by another person on behalf of the applicant.

- (4) An eligible issuing officer who issues a digital evidence access order (organised crime) on an application made by telephone must—
 - (a) complete and sign the digital evidence access order (organised crime), and
 - (b) either—
 - (i) give the digital evidence access order (organised crime) to the person who made the application, or
 - (ii) inform the person of the terms of the digital evidence access order (organised crime) and the date and time the order was signed.
- (5) The applicant must, as soon as practicable after making the application, verify the information given by the applicant in or in connection with the application by affidavit given to the eligible issuing officer.
- (6) If a digital evidence access order (organised crime) is issued on an application made by telephone and the applicant was not given the order, the applicant must—
 - (a) complete a form of digital evidence access order (organised crime) in the terms indicated by the eligible issuing officer under subsection (4)(b)(ii), and
 - (b) write on the order—
 - (i) the name of the eligible issuing officer, and
 - (ii) the date and time the order was signed.
- (7) A form of digital evidence access order (organised crime) completed under subsection (6) is taken to be a digital evidence access order (organised crime) issued in accordance with this Act.
- (8) A digital evidence access order (organised crime) must be given by an eligible issuing officer by email, if the facilities to do so are readily available, and the emailed copy is taken to be the original document.

76AX Information in applications for digital evidence access orders (organised crime)

- (1) An application for a digital evidence access order (organised crime) must include the following information—
 - (a) the name of the applicant,
 - (b) details of the person in relation to whom it is proposed the digital evidence access order (organised crime) will be issued,
 - (c) a description of the computer,
 - (d) how and when the computer was obtained by a police officer,
 - (e) details of the organised crime offence in relation to which it is proposed the digital evidence access order (organised crime) will be issued, including information about how the serious offence is linked to organised crime,
 - (f) why the person the subject of the application is reasonably suspected of—
 - (i) committing the organised crime offence, or
 - (ii) having knowledge of the organised crime offence,
 - (g) particulars of the grounds on which the application is based, including the grounds for reasonably suspecting data contained on the computer

is connected to or relevant to the investigation of an organised crime offence,

- (h) if a previous application for the same digital evidence access order (organised crime) was refused—details of the refusal and any additional information required by section 76AZ,
 - (i) other information required by the regulations.
- (2) If the person the subject of the application for the digital evidence access order (organised crime) is less than 18 years of age, the application must be accompanied by a document signed by a police officer of the rank of Inspector or above authorising the applicant to make the application.
 - (3) The applicant must provide, either orally or in writing, any further information the eligible issuing officer requires about the grounds on which the digital evidence access order (organised crime) is being sought.
 - (4) Nothing in this section requires an applicant for a digital evidence access order (organised crime) to disclose the identity of a person from whom information was obtained if the applicant is satisfied the disclosure might jeopardise the safety of any person.

76AY False or misleading information in applications

- (1) A person must not, in or in connection with an application for a digital evidence access order (organised crime), give information to an eligible issuing officer that the person knows to be false or misleading in a material particular.
Maximum penalty—100 penalty units or imprisonment for 2 years, or both.
- (2) This section applies whether or not the information given is also verified on oath or affirmation or by affidavit.

76AZ Further application for digital evidence access order (organised crime) after refusal

If an application by a police officer for a digital evidence access order (organised crime) is refused by an eligible issuing officer, the police officer or another police officer who is aware of the application may not make a further application for the same digital evidence access order (organised crime) unless the further application provides additional information that justifies the making of the further application.

Subdivision 3 Determining applications for digital evidence access orders (organised crime)

76AZA Matters to be considered in determining reasonable grounds for digital evidence access orders (organised crime)

An eligible issuing officer, when determining whether there are reasonable grounds to issue a digital evidence access order (organised crime), must consider the reliability of the information on which the application is based, including the nature of the source of the information.

76AZB Decisions about applications for digital evidence access orders (organised crime)

- (1) The eligible issuing officer must—
 - (a) consider the application for the digital evidence access order (organised crime), and

- (b) decide whether or not to grant the application and issue a digital evidence access order (organised crime).
- (2) The eligible issuing officer may grant an application for a digital evidence access order (organised crime) only if the eligible issuing officer is satisfied—
 - (a) there are reasonable grounds for believing the computer was lawfully seized, and
 - (b) there are reasonable grounds for suspecting data contained on the computer is connected to or relevant to the investigation of an organised crime offence, and
 - (c) there are reasonable grounds to suspect the person in relation to whom it is proposed the digital evidence access order (organised crime) will be issued—
 - (i) committed the organised crime offence, or
 - (ii) has knowledge of the organised crime offence, and
 - (d) the person in relation to whom it is proposed the digital evidence access order (organised crime) will be issued has relevant knowledge of—
 - (i) the computer or a computer network of which the computer forms or formed a part, or
 - (ii) measures applied to protect data held in, or accessible from, the computer.
- (3) If the eligible issuing officer grants the application, the officer must issue a digital evidence access order (organised crime) to the applicant.

Subdivision 4 Issue of digital evidence access orders (organised crime)

76AZC Form of digital evidence access orders (organised crime)

- (1) A digital evidence access order (organised crime) must be in the form prescribed by the regulations.
- (2) Without limiting subsection (1), a digital evidence access order (organised crime) must specify any conditions imposed in relation to the execution of the order.

76AZD Term of digital evidence access order (organised crime)

- (1) A digital evidence access order (organised crime) remains in force for a period of 7 business days after the order is issued.
- (2) A digital evidence access order (organised crime) may be extended by an eligible issuing officer, on application by the executing officer for the order, for no more than 3 additional periods of 7 business days.
- (3) An application for a further digital evidence access order (organised crime) may be made in relation to the same computer.

76AZE Effect of digital evidence access order (organised crime)

- (1) The executing officer for a digital evidence access order (organised crime) may direct the specified person to—
 - (a) give the officer any information or assistance reasonable and necessary to enable the officer to access data held in or accessible from a computer specified in, or within the scope of, the order, or

- (b) give the officer any information or assistance reasonable and necessary to allow the officer to—
 - (i) copy data from a computer specified in, or within the scope of, the order to another computer, or
 - (ii) convert the data into a documentary form or another form intelligible to a computer used by the officer.
- (2) Without limiting subsection (1), the executing officer may require the specified person to provide reasonable and necessary assistance in accessing data on a computer secured by biometric means, including, for example, fingerprints or retina scans.
- (3) Without limiting this section, a direction may specify a time by which the specified person is required to carry out the direction.
- (4) The executing officer must not direct a specified person who is less than 18 years of age unless reasonable steps are taken to have a support person present to represent the interests of the specified person while the specified person is directed.
- (5) To avoid doubt—
 - (a) information given by a specified person under subsection (1) to access data held in or accessible from a computer may be used only for that purpose and no other purpose, and
 - (b) this section is subject to any other provision of this Act or another Act that provides for how a police officer may take particulars that are necessary to identify a person.

Note— See, for example, Part 10, which provides for the taking of identification particulars from persons in custody and other offenders, including section 136, which provides for identification particulars of children who are less than 14 years of age.
- (6) In this section—

support person, for a specified person, means a person, other than a police officer, who—

 - (a) is acceptable to the specified person, and
 - (b) is—
 - (i) a parent or guardian of the specified person, or
 - (ii) capable of representing the interests of the specified person.

76AZF Duty to produce digital evidence access order (organised crime)

A person executing a digital evidence access order (organised crime) must produce the order for inspection by the specified person for the order if requested by the specified person.

76AZG Failure to comply with digital evidence access order (organised crime)

- (1) A specified person for a digital evidence access order (organised crime) must not, without reasonable excuse—
 - (a) fail to comply with a direction given, in accordance with the digital evidence access order (organised crime), by the executing officer for the order, or
 - (b) give the executing officer information that is false or misleading in a material particular in purported compliance with a direction given by the executing officer, unless the person informs the executing officer the information is false or misleading.

Maximum penalty—100 penalty units or imprisonment for 7 years, or both.

- (2) Without limiting subsection (1), it is not a reasonable excuse for a specified person for a digital evidence access order (organised crime) to fail to comply with the order or a requirement made in accordance with the order on the ground that complying with the order or the requirement would tend to incriminate the person or otherwise expose the person to a penalty.

Subdivision 5 Miscellaneous

76AZH Record of proceedings before eligible issuing officer

- (1) An eligible issuing officer who issues a digital evidence access order (organised crime) must ensure a record is made of all relevant particulars of the grounds the eligible issuing officer has relied on to justify the issue of the order.
- (2) An eligible issuing officer who refuses to issue a digital evidence access order (organised crime) must ensure a record is made of all relevant particulars of the grounds the eligible issuing officer has relied on to justify the refusal to issue the order.
- (3) A matter that might disclose the identity of a person must not be recorded under this section if the eligible issuing officer is satisfied that making the record might jeopardise the safety of any person.

Note— Regulations made under section 238(3) may provide that certain documents that may disclose the identity of persons are not available for inspection.

76AZI Defects in digital evidence access orders (organised crime)

A digital evidence access order (organised crime) is not invalidated by a defect, other than a defect that affects the substance of the order in a material particular.

[13] Section 80F Information in applications for DECCD access orders

Insert “or was” after “being” in section 80F(1)(c).

[14] Section 80J Decisions about applications for DECCD access orders

Omit section 80J(2)(a).

Insert instead—

- (a) there are reasonable grounds for suspecting the person specified in the application—
- (i) is in possession of a device suspected of being a dedicated encrypted criminal communication device and is committing a DECCD offence, or
- (ii) was in possession of a device suspected of being a dedicated encrypted criminal communication device and was committing a DECCD offence at the time of the possession, and

[15] Section 238 Regulations

Omit “digital evidence access orders” wherever occurring in section 238(3).

Insert instead “digital evidence access orders (warrant) and digital evidence access orders (organised crime)”.

[16] Section 243

Omit the section.

Insert instead—

243 Review of Part 5, Divisions 4A and 4B

- (1) The Minister must, from time to time, review the relevant provisions to determine whether—
 - (a) the policy objectives of the relevant provisions remain valid, and
 - (b) the terms of the relevant provisions remain appropriate for achieving the objectives.
- (2) A review of the relevant provisions must be undertaken—
 - (a) for the first review—as soon as practicable after the period of 2 years from the commencement of Part 5, Division 4B, and
 - (b) for subsequent reviews—at intervals of not more than 4 years.
- (3) A report on the outcome of each review must be tabled in each House of Parliament within 12 months after the last day by which the review must be commenced.
- (4) In this section—
relevant provisions means Part 5, Divisions 4A and 4B.

244 Review of certain provisions by LECC

- (1) The Law Enforcement Conduct Commission must review the relevant provisions to determine whether—
 - (a) the policy objectives of the relevant provisions remain valid, and
 - (b) the terms of the relevant provisions remain appropriate for achieving the objectives.
- (2) The review must be undertaken as soon as practicable after the period of 2 years from the commencement of the relevant provisions.
- (3) A report on the outcome of the review must be tabled in each House of Parliament within 6 months after the review commences.
- (4) In this section—
relevant provisions means the amendments to this Act made by the *Crimes and Other Legislation Amendment (Further Organised Crimes Reforms) Act 2026*.

Schedule 6 Amendment of Criminal Procedure Act 1986 No 209

[1] Schedule 1 Indictable offences triable summarily

Omit “section 76AO” from Table 2, clause 10J.

Insert instead “section 76AO(1) or 76AZG(1)”.

[2] Schedule 1, Table 2, clause 27A

Insert after clause 27—

27A Crime Commission Act 2012

An offence under the *Crime Commission Act 2012*, section 25, 37(3), 45(3), 45A(6), 47D(5) or 47G(1).

Schedule 7 Amendment of Road Transport Act 2013 No 18

[1] Section 271A

Omit the section.

Insert instead—

271A Participation by authorised government agencies in face matching services

- (1) An authorised government agency may enter into an arrangement, by agreement, understanding or otherwise, to facilitate participation in a face matching service.
- (2) An authorised government agency may do the following—
 - (a) collect face-matching service information for an authorised purpose,
 - (b) use face-matching service information for an authorised purpose,
 - (c) release or disclose face-matching service information to a participant or the Commonwealth—
 - (i) for the purpose of the participant or the Commonwealth participating in the national agreement, or
 - (ii) for another purpose in accordance with the national agreement or the Commonwealth Act.
- (3) The *Privacy and Personal Information Protection Act 1998* does not apply to the extent of an inconsistency with this section.
- (4) The regulations may provide for further matters to facilitate participation in a face matching service.
- (5) In this section—

authorised government agency means the following—

 - (a) TfNSW,
 - (b) an agent of TfNSW,
 - (c) another government agency participating in a face matching service in accordance with—
 - (i) the national agreement, or
 - (ii) the Commonwealth Act.

authorised purpose, for an authorised government agency, means—

- (a) for the purpose of a face matching service, or
- (b) another lawful purpose in connection with the exercise of the authorised government agency's functions.

collect includes download.

Commonwealth Act means the *Identity Verification Services Act 2023* of the Commonwealth.

face matching service has the same meaning as in the national agreement.

Face Matching Service Hub has the same meaning as in the Commonwealth Act.

Note— See the Commonwealth Act, section 5.

face-matching service information has the same meaning as in the Commonwealth Act.

Note— **Face-matching service information** includes any information that is included in a driver licence or otherwise associated with a driver licence and information included in a document that is issued by a State or Territory in a name of an individual,

contains a photograph of the individual and can be used to prove the individual's identity, including a "proof of age" card. See the Commonwealth Act, section 6(2)(g) and (h).

national agreement means the Intergovernmental Agreement on Identity Matching Services entered into by the Commonwealth, the States and the Territories in October 2017, as in force from time to time.

NDLFRS has the same meaning as in the Commonwealth Act.

Note— NDLFRS is short for National Driver Licence Facial Recognition Solution and has the meaning given by the Commonwealth Act, section 5.

release includes—

- (a) upload to the NDLFRS, and
- (b) relay electronic communications using the Face Matching Service Hub.

Schedule 8 Amendment of Roads Act 1993 No 33

[1] Section 250A Approved camera recording devices—toll offences

Omit section 250A(4)–(5A).

[2] Part 15B

Insert after section 261B—

Part 15B Collection, storage and disclosure of toll camera images

261C Definitions

In this part—

approved toll camera has the same meaning as in section 250A.

photograph has the same meaning as in section 250A.

relevant information means information acquired in the exercise of functions in connection with the use or operation of an approved toll camera, including a photograph taken by an approved toll camera under section 261D.

serious indictable offence has the same meaning as in the *Crimes Act 1900*.

toll camera image means a photograph taken by an approved toll camera.

261D Photographs approved toll camera is permitted to take

An approved toll camera is permitted to take a photograph of the following—

- (a) a vehicle,
- (b) the driver of a vehicle,
- (c) a passenger in a vehicle, including a passenger who is less than 16 years of age.

261E Prohibition on collection, storage and disclosure of toll camera images except for certain purposes

A person who acquires relevant information must not directly or indirectly make a record of, or make use of or disclose, the relevant information except as follows—

- (a) in the exercise of functions in connection with—
 - (i) the payment, collection and enforcement of tolls, or
 - (ii) another function prescribed in relation to tolls,
- (b) as permitted under section 261F or 261G.

Maximum penalty—50 penalty units.

261F Collection, storage and disclosure of toll camera images for purposes relating to NSW Police Force

- (1) A person may collect, store and disclose relevant information—
 - (a) for the investigation of serious indictable offences by the NSW Police Force and the prosecution of the serious indictable offences, or
 - (b) if it is reasonably necessary to locate a person who the NSW Police Force has been notified is missing, or
 - (c) to prevent or lessen a serious threat to the life, or health or safety, of a person, including a child, or

- (d) to support an investigation into a death, suspected death, fire or explosion for the purposes of the *Coroners Act 2009*.
- (2) A person must, if asked by the Law Enforcement Conduct Commission, collect, store or disclose the following information for the purposes of the Law Enforcement Conduct Commission's functions—
 - (a) relevant information,
 - (b) information about the collection, storage and disclosure of relevant information under subsection (1).

261G Disclosure of toll camera images to other authorised agencies

- (1) A person may disclose relevant information to an authorised agency if—
 - (a) either or both of the following apply—
 - (i) the person is—
 - (A) a toll operator, or
 - (B) an officer of a toll operator, or
 - (C) a person exercising functions on behalf of or otherwise acting under the authority of a toll operator,
 - (ii) the disclosure of the information is in accordance with a protocol approved by the Privacy Commissioner, and
 - (b) the relevant information was acquired in relation to a vehicle driven in contravention of a requirement to pay a relevant toll.
- (2) In this section—

authorised agency means the following persons or agencies—

 - (a) the Australian Crime Commission,
 - (b) the Independent Commission Against Corruption,
 - (c) the New South Wales Crime Commission,
 - (d) the NSW Police Force,
 - (e) the Law Enforcement Conduct Commission,
 - (f) the Ombudsman,
 - (g) another person or government agency prescribed for the purpose of this paragraph.